

Exhibit B: Sample Amended Work Order Contract

STATE OF MINNESOTA WORK ORDER CONTRACT AMENDMENT 1

Agreement Start Date:	_____	Total Agreement Amount:	_____ \$0.00
Original Expiration Date:	_____	Original Agreement:	_____ \$0.00
Current Expiration Date:	_____	Previous Amendment(s) Total:	_____ \$0.00
Requested Expiration Date:	_____	This Amendment:	_____ \$0.00

This amendment is by and between the [FILL IN NAME OF STATE INTITUION], acting through its [FILL IN THE NAME OF YOUR AGENCY OR BOARD. EXAMPLE: "commissioner of _____" OR "director of _____."] ("State Institution") and [GIVE THE FULL NAME OF THE CONTRACTOR INCLUDING ITS ADDRESS] ("Contractor"). This work order contract is issued under the authority of Master Contract T-Number _____, CFMS Number _____, and is subject to all provisions of the master contract which is incorporated by reference.

Recitals

1. WHEREAS, the Minnesota Department of Commerce ("Commerce") entered into a Master Contract with Contractor identified as Master Contract #####, dated mm/dd/yyyy ("Original Master Contract"), for energy savings study work.
2. WHEREAS, State Institution then entered into a Work Order Contract with Contractor identified as Work Order Contract #####, dated mm/dd/yyyy ("Original Work Order Contract"), to complete energy savings study work.
3. WHEREAS, State Institution and Contractor wish to amend the Original Work Order Contract to extend the term and to add terms and conditions further defining scope of work to be performed by Contractor and payment thereof by the State Institution, and to incorporate various Exhibits and Attachments to the Original Work Order Contract, as provided below.
4. NOW, THEREFORE, State Institution and Contractor have agreed to amend the Original Work Order Contract as stated below.

Amendment(s)

REVISION 1. Clause 1. "Term of Contract" is amended as follows:

- 1.1 **Effective date.** [date], or the date the State Institution obtains all required signatures under Minn. Stat. § 16C.05, subd. 2, whichever is later.

The Contractor must not begin work under this contract until this contract is fully executed and the Contractor has been notified by the State Institution's Authorized Representative to begin the work.

- 1.2 **Expiration date.** [expiration date] [amended expiration date], or until all obligations have been satisfactorily fulfilled, whichever occurs first.

REVISION 2. Clause 3. "Consideration and Payment" is amended as follows:

3.1. Consideration

The State Institution will pay for all services performed by the Contractor an amount not to exceed the lesser of the total obligation specified in this clause or the product derived from the calculation specified in Exhibit B-1, which is attached and incorporated into this Work Order unless recommendations provided in the Preliminary Assessment and Analysis are not, in the sole discretion of the State, deemed reasonable and viable.

- 3.1.1 **Compensation.** The Contractor will be paid for actual eligible costs incurred, not to exceed **WORDS AMENDED WORDS Thousands** dollars (\$[Comp] [amended Comp]).

- 3.1.2 **Travel Expenses.** Reimbursement for travel and subsistence expenses actually and necessarily incurred by the Contractor as a result of this Work Order will be reimbursed in same manner and in no greater amount than provided in the current "Commissioner's Plan" promulgated by the Commissioner of Minnesota Management and Budget. The Contractor will not be reimbursed for travel and subsistence expenses incurred outside Minnesota unless it has received the State Institution's prior written approval for out of state travel. Minnesota will be considered the home state for determining whether travel is out of state, and will not exceed **WORDS AMENDED WORDS Hundreds** dollars (\$[Travel] [amended Travel]).

- 3.1.3 **Total Obligation.** The total obligation of the State Institution for all compensation and reimbursements to the Contractor under this Work Order will not exceed **WORDS AMENDED WORDS Thousands** dollars (\$[Total] [amended Total]).

3.2. Payment

- 3.2.1. **Invoices.** The State Institution will promptly pay the Contractor after the Contractor presents an itemized invoice for the services actually performed and the State Institution's Authorized Representative accepts the invoiced services. Invoices must be submitted timely and according to the following schedule outlined in Exhibit A-1, which is attached hereto and incorporated into this Work Order.

- 3.2.2. **Retainage.** Under Minn. Stat. § 16C.08, subd. 5(b), no more than 90 percent of the amount due under any Work Order may be paid until the final product of the Work Order has been reviewed by the State Institution's